

AGREEMENT AND PLAN OF MERGER

(LOW RISK / STANDARD PARALLEL VERSION)

This AGREEMENT AND PLAN OF MERGER is entered into as of June 12, 2026, by and among Acquisition Corp. ("Buyer"), Target Enterprise Solutions, Inc. ("Company"), and the Selling Shareholders.

ARTICLE I: REPRESENTATIONS AND WARRANTIES

Section 1.1 Survival of Fundamental Terms. The fundamental representations and warranties of the Target Company shall survive the closing date and continue in full force and effect for a duration of thirty-six (36) months following the execution date before expiring. CHUNK_030

Section 1.2 Survival of Operational Terms. The operational representations and warranties of the Seller contained within Article IV of this contract shall survive the transaction closing for a standard period of eighteen (18) months, at which point they will lapse. CHUNK_038

ARTICLE II: COVENANTS

Section 2.1 Commitments and Capital Expenditures. Prior to the Closing, the Seller covenants that it will provide written notice to Buyer before entering into any capital expenditure commitment exceeding fifty thousand dollars (\$50,000), such consent from Buyer not to be unreasonably withheld, conditioned, or delayed. CHUNK_031

ARTICLE III: LIMITATION OF LIABILITY

Section 3.1 Indemnification Cap. The aggregate maximum liability of the Selling Shareholders for breaches of operational representations and warranties under this agreement shall be capped at an amount equal to fifty percent (50%) of the final adjusted Purchase Price. CHUNK_032

Section 3.2 Waiver of Consequential Damages. Except in cases of willful misconduct or deliberate fraud, neither party shall be liable to the other for any indirect, incidental, special, exemplary, or consequential damages, including loss of anticipated profits, arising out of this agreement. CHUNK_034

ARTICLE IV: MISCELLANEOUS

Section 4.1 Fee Shifting. In the event that any litigation is instituted to enforce the terms of this transaction, the prevailing party shall be entitled to recover its reasonable attorneys' fees. CHUNK_033

CHUNK_036

Section 4.2 Notices. All notices hereunder will be in writing and shall be deemed duly given if delivered personally or sent by certified mail.

Section 4.3 Governing Law. This Agreement shall be governed by, and construed in accordance with, the domestic laws of the State of Delaware. CHUNK_037

Section 4.4 Severability. If any provision of this M&A Agreement is held to be illegal, such provision shall be fully severable. CHUNK_039

Section 4.5 Advisory Fees. Each of the signing parties shall be solely responsible for paying its own legal and advisory fees. CHUNK_040

Section 4.6 Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original instrument. CHUNK_035

BUYER:

Acquisition Corp.

SELLER:

Target Enterprise Solutions

By: Jonathan Vance, VP

By: Marcus Brody, CEO